

Department of Public Works and Highways

Contract ID: **24BJ0005**
Contract Name: **Protect Lives and Properties Against Major Floods: Construction/Maintenance of Flood Mitigation Structures and Drainage Systems: Construction of Flood Control along Sta. Fe River, Balete Section, Sta. Fe, Nueva Vizcaya**
Location of the Contract: **Sta. Fe, Nueva Vizcaya**

FORM OF CONTRACT AGREEMENT

KNOW ALL MEN BY THESE PRESENTS:

This **CONTRACT AGREEMENT**, made this **13th** day of **February 2024**, by and between:

The **GOVERNMENT OF THE REPUBLIC OF THE PHILIPPINES** through the **District Engineer, MARLYN G. INGUILLO**, duly authorized for this purpose, with main office address at **Malasin, Dupax del Norte, Nueva Vizcaya**, hereinafter referred to as the **"PROCURING ENTITY"**;

-and-

BRG CONSTRUCTION, a single proprietorship/partnership/corporation/ joint venture organized and existing under and by virtue of laws of the Republic of the Philippines, with main office address at **#15 Cabarroquis St., Salvacion, Bayombong, Nueva Vizcaya**, represented herein by **BAYANI R. GAJES**, duly authorized for this purpose, hereinafter referred to as the **"CONTRACTOR;"**

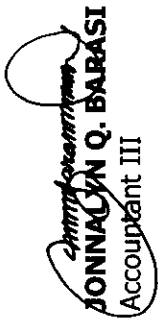
WITNESSETH:

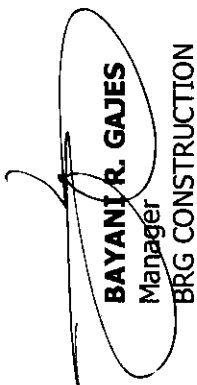
WHEREAS, the **PROCURING ENTITY** is desirous that the **CONTRACTOR** execute the Works under **24BJ0005: Protect Lives and Properties Against Major Floods: Construction/Maintenance of Flood Mitigation Structures and Drainage Systems: Construction of Flood Control along Sta. Fe River, Balete Section, Sta. Fe, Nueva Vizcaya**, hereinafter called "the Works," and the **PROCURING ENTITY** has accepted the Calculated Bid of the **CONTRACTOR** for the execution and completion of the Works at the calculated unit bid prices shown in the attached Bill of Quantities, or a total Contract price of **Ninety Three Million Nine Hundred Ninety Thousand Pesos and 00/100 (P 93,990,000.00)**.

NOW, THEREFORE, for and consideration of the foregoing premises, the parties hereto agree as follows:

In this **CONTRACT AGREEMENT**, words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract hereinafter referred to.

The following documents shall be attached, deemed to form, and be read and construed as part of this **CONTRACT AGREEMENT**, and shall be interpreted in the following order of priority:


JONNACYN Q. BARASI
Accountant III


BAYANI R. GAJES
Manager
BRG CONSTRUCTION


MARLYN G. INGUILLO
District Engineer

Department of Public Works and Highways

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This Contract Agreement

Documents forming part of the Contract Agreement:

Notice of Award (NOA) with the Contractor's signed "conforme"

Contractor's Bid in the Form of Bid, including its Technical and Financial Proposals, as calculated by the Procuring Entity and conformed to by the Contractor through the NOA.

Bidding Documents with Bulletins

Specifications

Drawings

Special Conditions of Contract (SCC)

General Conditions of Contract (GCC)

Performance Security

Integrity Pledge under Department Order No. 86, series of 2013

Other Documents

Construction Methods

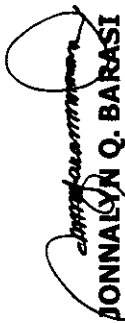
Construction Schedule in the form of PERT/CPM Diagram or Precedence Diagram and Bar Chart with S-Curve, or other approved tools of project scheduling, and Cash Flow.

Manpower Schedule

Equipment Utilization Schedule

Construction Safety and Health Program initially approved by the Head of the Procuring Entity
Contractor's All Risk Insurance (CARI)

In consideration of the payments to be made by the PROCURING ENTITY to the CONTRACTOR as hereinafter mentioned, the CONTRACTOR hereby covenants with the PROCURING ENTITY to execute and complete the Works and remedy any


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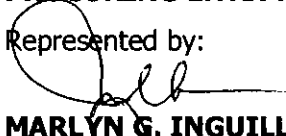
defects therein in conformity with the provisions of this **CONTRACT AGREEMENT** in all respects.

In consideration of the execution and completion of the Works by the CONTRACTOR, the PROCURING ENTITY hereby covenants to pay the CONTRACTOR the unit prices in the CONTRACTOR's Calculated Bid, as applied to the actual quantities accomplished as certified by the PROCURING ENTITY under the provisions of this **CONTRACT AGREEMENT**, at the times and in the manner prescribed by this **CONTRACT AGREEMENT**.

IN WITNESS WHEREOF, the parties hereto set their respective hands on the day, month and year first above written.

PROCURING ENTITY:

Represented by:


MARLYN G. INGUILLO

District Engineer

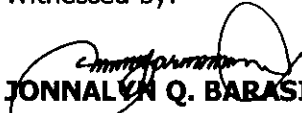
CONTRACTOR:

Represented by:


BAYANI R. GAJES

Manager

Witnessed by:


JONNALYN Q. BARASI

Accountant

BEFORE ME, a Notary Public for and in the Province of Nueva Vizcaya, personally came and appeared **Marlyn G. Inguillo**, with **Professional Identification Card** with registration no. **0028896** valid until **April 22, 2026**, and **BAYANI R. GAJES**, with **PRC ID NO. 0038940**, known to me and to me known to be the same persons who executed the foregoing instrument consisting of four (4) pages including this page where the acknowledgment is written and they acknowledged to me that the same is their true act and deed for and in behalf of the PARTIES they represent.

IN WITNESS WHEREOF, I have hereunto affixed my signature and seal this **13th** day of **February 2024**.

Department of Public Works and Highways

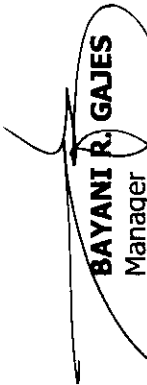
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JONNALYN Q. BARASI
Accountant III

Notary Public

ATTY. FERNANDEZ B. TAGART
P.T.R. No. **NOTARY PUBLIC, BAYOMBONG, NUEVA VIZCAYA**
VALID UNTIL DECEMBER 31, 2025
Issued On **PTR NO. NV 2833613-01/02/2024**
ROLL NO. 83403-06/07/2022
Issued At: **BP NO. 330765-12/19/2023**

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Series of 2024


BAYANI R. GAJES
Manager
BRG CONSTRUCTION


MARLYN G. INGUILLO
District Engineer